

24TRCV04451 24TRCV04451

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-13

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Case Number: 24TRCV04451 Hearing Date: August 13, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

MICAH

HERD, an individual

Plaintiff,

Case No.:

24TRCV04451

vs.

[Tentative]

Denied

FORD

MOTOR COMPANY, a corporation; and DOES 1 through 10, inclusive,

Defendants.

Hearing

Date: August 13, 2026

Moving

Parties: Plaintiff Micah Herd

Responding Party: Defendant Ford Motor Company

HEARING: Motion to Set Aside Dismissal

The Court considered the moving,
opposition, and reply papers.

RULING

The Court denies the Motion to Set
Aside Dismissal.

BACKGROUND

On

December 31, 2024, Plaintiff Miach Herd filed the Complaint against Defendant
Ford Motor Company alleging causes of action for violations of the Song-Beverly
Act.

On October 27, 2025,
after Plaintiff failed to appear at the hearing on the Motion to Compel, the
Court dismissed the case without prejudice.

On March
25, 2026, Plaintiff filed the Motion to Set Aside Dismissal.

On April 20, 2026, the
Court granted the Motion to Set Aside Dismissal.

On June 8, 2026, the
parties stipulated to vacate the prior order, as Plaintiff failed to serve
Defendant with the prior motion and had Plaintiff refile the Motion to Set
Aside Dismissal.

On June 26, 2026,

Plaintiff refiled the instant motion.

On July 31, 2026,
Defendant filed the Opposition.

On August 6, 2026,
Plaintiff filed the Reply.

LEGAL STANDARD

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect... [The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473 subd. (b).) “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court... [Citation.]” (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 981-82.)

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Although a trial court has the discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) “The defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner.” (Id. at 504.) Moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

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Code Civ. Proc., § 473 subd. (d) provides in relevant part that “[t]he court may, upon motion of the injured party... set aside any void judgment or order.” (Code Civ. Proc., § 473 subd. (d).) ;

Code Civ. Proc., section 473.5 permits the Court to set aside a default and default judgment when the service of a summons has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.)² The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:³

²

1) two years after entry of a default judgment against him or her; or⁴

2) 180 days after service on him or her of a written notice that the default or default judgment has been entered. ⁵

(Code Civ. Proc., § 473.5.)

DISCUSSION

Timeliness

An application for discretionary relief must be made within a reasonable time, not exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 340.) The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period. (Ibid.)

In Arambula, the Court found that a later filed motion cannot relate back to an earlier defective motion to satisfy the six-month deadline found in section 473(b). (Id. at 341-342.) Here, the facts are extremely similar to Arambula; Plaintiff filed a timely Motion to Set Aside. But failed to serve it, followed by an untimely but served Motion to Set Aside. (See Ibid.) Thus, the Court must find that the instant motion is untimely. Plaintiff argues that the parties' stipulation waived the timeliness issues and that denying the instant motion after granting the previous one would give Defendant an unearned windfall. However, the Court had

no power to grant the original motion as no service was completed, and the Court cannot consider any public policy or fairness issues because the six-month time limit is mandatory and jurisdictional. (Id at 340.)

Therefore, the Court denies the Motion to Set Aside Dismissal.